

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

March 10, 2014

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Mr. Brown, Ms. Broyles, Mr. Cook, Mr. Luna, Dr. Rinne, Mr. Shanor, Mr. Valdez and Ms. Williams. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Dr. Rinne moved to suspend the rules to change the order of the agenda by moving Agenda Item #14 (Resolution - Adopting PlanCheyenne) to be acted upon subsequent to Agenda Item #26 (a) (Re-Appointment) and prior to Other Business, seconded by Mr. Shanor. Motion carried. Voting "yes" -- all members of the governing body.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Brown, and pursuant to support received by Dr. Rinne and Mr. Allen, Agenda Item #22(b) was removed from the Consent Agenda. Mr. Allen moved to approve remaining Consent Agenda items, seconded by Mr. Luna. Motion carried. Voting "yes" -- all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on February 24, 2014. Motion (per Consent Agenda) carried.

Mr. Brown declared a conflict of interest (business interest in voucher payable to Ameri-Tech HVAC Services) and vacated Council Chambers. Ms. Broyles moved to approve payment of vouchers as presented, seconded by Mr. Allen. Upon inquiry regarding a voucher payable to Ross, Ross and Santini, Dan White, City Attorney, advised the law firm is on retainer by contract to provide Municipal Court public defender fees, and explained when services are provided. In conjunction with a voucher payable to Benchmark Engineers, request was made to provide City Council members with an update on the Christensen Road Overpass and Corridor project with Mayor Kaysen advising information would be provided by the City Engineer and noting an update on the Public Safety Center would be provided at a work session scheduled for March 26. In response to query concerning a voucher payable to CDW-G Computing Solutions, Lois Huff, City Treasurer, confirmed that payment was for costs associated with the purchase of multiple items. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from CB Community Business to MUR Mixed-Use Residential Emphasis for the south 79 feet of Lot 8, Block 311, Original City, Cheyenne, Wyoming

(located at the northwest corner of the intersection of E. 18th Street and Logan Avenue). Reporting for Public Services Committee, Mr. Shanor moved to approve on third and final reading, seconded by Ms. Williams. Motion carried. Voting “yes” -- all members of the governing body. (#4022)

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from CB Community Business to LI Light Industrial for Lot 1, Block 1, Public Works Addition, Cheyenne, Wyoming (located on the west side of North College Drive). Anthony Reyes, Riske and Salisbury Law Firm, representing David Trefren and various trusts he administers, clarified they support the LI zone amendment. Mr. Shanor moved to approve on third and final reading, seconded by Mr. Allen. Upon inquiry, Mr. Reyes confirmed at this point Mr. Trefren does not have a concern with the proposed LI zone, noting Mr. Trefren does have a concern as his residence is in the vicinity, and stated his belief that the gate to be placed on Avenue D will be located upon the weigh station property. Upon inquiry, Craig LaVoy, Public Works Department, stated the road (re: Avenue D) currently is not required to be paved under Phase I of the project, but under Phase II and III it may be considered, and verified the gate/road portion will not be for public use. Motion carried. Voting “yes” -- all members of the governing body. (#4023)

[CA] RESOLUTION - Declaring as surplus a City-owned property located at 1700 and 1710 Snyder Avenue, legally described as all of Lot 8, Block 348, Original City, together with improvements thereon, Cheyenne, Laramie County, Wyoming, and authorizing the City's Purchasing Director to proceed with the sale of said parcel pursuant to Wyo. Stat. §15-1-112. Motion (per Consent Agenda) carried. (#5568)

RESOLUTION - Amending the City of Cheyenne and Board of Public Utilities Construction Specifications and Standard Drawings, 2007 Edition. Mr. Shanor moved to adopt, seconded by Ms. Williams. Mr. Shanor moved to amend by replacing Standard Drawing Nos. 02665-24 and 02665-15 with updated drawings dated February 2014, seconded by Mr. Luna. Motion to amend carried. Voting “yes” -- all members of the governing body. Comment followed on the length of the document and allowing time for further review. Ms. Broyles moved to postpone for two weeks. Motion failed due to lack of a second. Inquiry was made regarding proposed changes to various sections within the Specifications concerning safety, sediment erosion control and storm water management, aggregates, potholes, and guarantees/warranties. Nathan Beauheim, City Engineer's office, provided information on the proposed changes; types of aggregate being required; pothole and pavement patching by contractors, and asphalt patching requirements. Upon further inquiry, Mr. Beauheim explained time frames involving guarantees/warranties for asphalt or concrete work provided by contractors, project “walk-through” and inspection procedures, and pothole patching by City crews. Main motion as amended carried. Voting “yes” -- all members of the governing body with the exception of Ms. Broyles voting “no”. (#5569)

[CA] RESOLUTION - Authorizing the Governing Body of the City of Cheyenne to adopt the revised Statement of Investment Policy. Motion (per Consent Agenda) carried. (#5570)

[CA] RESOLUTION - Amending Resolution No. 5399 pertaining to adoption of new body art special event license and guest body artist permit fees by Cheyenne-Laramie County Board of Health for various services and inspections. Motion (per Consent Agenda) carried. (#5571)

[CA] RESOLUTION - Authorizing the City of Cheyenne to approve and accept the Wyoming Division of Victim Services Funding Application State Fiscal Year 2015 and 2016, July 1, 2014 to June 30, 2016. Motion (per Consent Agenda) carried. (#5572)

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a County Final Plat for Deerhaven Subdivision, 3rd Filing, a replat of Deerhaven Subdivision, 2nd Filing, Laramie County, Wyoming (located at the southeast corner of the intersection of Montalto Drive and E. Fox Farm Road) -- referred to Public Services Committee (sponsor -- Mr. Shanor).

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Capitol Ridge, a replat of all of Lots 1-24, Block 14, Interior Heights Addition, Cheyenne, Wyoming (located at the northwest corner of the intersection of W. 4th Street and Cribbon Avenue) -- referred to Public Services Committee (sponsor -- Mr. Shanor).

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for The Bluffs, 9th Filing, a replat of Lots 13 thru 16, Block 3 and Lots 8 thru 15, Block 8, The Bluffs, 7th Filing, Cheyenne, Wyoming (located east of and adjacent to Point Bluff, between Foothills and Plain View Roads) -- referred to Public Services Committee (sponsor -- Mr. Shanor).

[CA] RESOLUTION - Authorizing the Mayor and City Clerk to execute a State Historic Preservation Office Certified Local Government (CLG) Grant Agreement in order to fund the 2014 Historic Cheyenne Film Contest Project -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - Authorizing the Mayor and City Clerk to execute a State Historic Preservation Office Certified Local Government (CLG) Grant Agreement in order to fund design of a new Cheyenne Historic Preservation Board logo and design and production of new brochures relating to Historic Preservation in the City of Cheyenne -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - Re-appropriating the Fiscal Year 2014 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113 -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] Preliminary Plat for Pronghorn Crossing, a replat of Lots 15 & 16, Block 17, Crest Ridge, 4th Filing, Cheyenne, Wyoming (located south of and adjacent to Storey Boulevard, west of Ridge Road) -- referred to Public Services Committee.

[CA] Memorandum of Understanding between the City of Cheyenne, Parks & Recreation Administration Department, and Laramie County, Wyoming, to provide funding for the division of responsibilities to complete the Polk Avenue project. Motion (per Consent Agenda) carried (amount not to exceed \$277,958.36). (#6134)

Memorandum of Understanding between the City of Cheyenne, Parks & Recreation Administration Department, and WC Investments, Inc., Cheyenne, Wyoming, to provide funding for the division of responsibilities to complete the Polk Avenue project. Reporting for Finance

Committee, Mr. Brown moved to approve in an amount not to exceed \$66,787.34, seconded by Mr. Valdez. Mr. Brown moved to amend by substitute dated March 6, 2014, seconded by Ms. Broyles. Upon inquiry, Jeff Wiggins, Parks and Recreation Department, reviewed the items that had been changed and included in the proposed substitute involving the payment schedule, furnishing of a letter of credit, and clarification of landscaping and maintenance responsibilities. Motion to amend carried. Voting "yes" -- all members of the governing body. Main motion as amended carried. Voting "yes" -- all members of the governing body. (#6135)

[CA] Design-Build Contract between the City of Cheyenne and Alliance Construction Solutions of Wyoming, LLC, for a pedestrian access bridge to connect the Jack R. Spiker Downtown Parking Structure with hotel facilities (Grant, repaid loan money). Motion (per Consent Agenda) carried. (#6136)

[CA] Professional Services Agreement between the City of Cheyenne and Orion Planning Group to provide an ordinance update for Historic Preservation Regulations (CLG Grant) -- referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and TischlerBise to provide a Development Impact Fee Study (Impact Assistance Funds and MPO Funds) -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Police Department, and Laramie County Sheriff's Department and Laramie County, Wyoming, for housing City prisoners at the Laramie County Detention Center -- referred to Finance Committee.

[CA] Juvenile Housing Agreement between Laramie County, Wyoming, and the City of Cheyenne -- referred to Finance Committee.

[CA] Contingency and Development Agreement, City of Cheyenne and Searing Industries, to be submitted to the Wyoming Business Council in connection with Business Ready Communities-Business Committed Grant and Loan program for the Swan Ranch Rail Spur Project (Business & Community Ready Grants) -- referred to Finance Committee.

[CA] Amended and Restated Project Development and Administration Agreement between the City of Cheyenne, Cheyenne-Laramie County Corporation for Economic Development (LEADS), and Granite Peak Development Limited Partnership, to be submitted to the Wyoming Business Council in connection with the Business Ready Communities-Business Committed Grant and Loan program for the Swan Ranch Rail Spur Project (Business & Community Ready Grants) -- referred to Finance Committee.

[CA] Track Lease Agreement between the City of Cheyenne, CLH, LLC, a Wyoming Limited Liability Company, and Granite Peak Development Limited Partnership, a Wyoming Limited Partnership, for rail facilities within Swan Ranch Rail Park, Cheyenne, Wyoming (Business & Community Ready Grants) -- referred to Finance Committee.

[CA] Contract Modification No. 3 to Contract No. 5181 between the City of Cheyenne, Municipal Court, and New World Systems for software maintenance. Motion (per Consent Agenda) carried. (#5181)

[CA] Contract Modification No. 1 to Contract No. 5907 between the City of Cheyenne, Engineering Department, and AVI Professional Corporation for additional design work and construction management services for the Snyder Reconstruction Design Project (2007 - 2010 1% Sales Tax) -- referred to Finance Committee.

[CA] Amendment No. 1 to Contract No. 6089 between the City of Cheyenne, Police Department, and the State of Wyoming Department of Transportation, Highway Safety Program for mobile impaired command post (Highway Safety Grant) -- referred to Finance Committee.

[CA] Consideration of Bid #M-10-14 for a contract between the City of Cheyenne, Parks & Recreation Department, and Reiman Corp & Subsidiary of Cheyenne, Wyoming, for the Polk Avenue Greenway Project (State & Local Grants; 1% Specific Purpose Sales & Use Tax). Motion (per Consent Agenda) carried (amount not to exceed \$706,166.03). (#6137)

[CA] Consideration of Bid #M-15-14 for annual purchase of furnishing aggregate for the Street and Alley Division (2011 - 2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #M-16-14 for annual purchase of hot mix, tack oil and cold mix for the Street and Alley Division (2011 - 2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #R-19-14 for furnishing 76 new desktop computers for the City of Cheyenne, Information Technology Division, pursuant to the City's replacement program (2011 - 2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Renewal of existing City liquor licenses (retail, restaurant, limited retail, resort, bar and grill liquor licenses and microbrewery permits) filed with the City Clerk's Office. The name of said applicant, type of license and description of premises which applicant desires to use as the place of sale are set forth as follows: High Plains Entertainment, Inc. d/b/a Redwood Lounge and Package Liquor, retail, 2105 E. Lincolnway; Cheyenne Vail Investments, Inc. d/b/a Gus & Jon's Crown Bar, retail, 222 West Lincolnway; Poor Richard's d/b/a Poor Richard's, retail, 2233 E. Lincolnway; W.W. Enterprises, Inc. d/b/a Les' Lamp Lounge and Drive-In Liquor, retail, 101 W. 6th St.; The Blue Bird, Inc. d/b/a Uncle Charlie's, retail, 6001 Yellowstone Road; Langhoff Enterprises d/b/a Two Bar Bowl, retail, 700 E. Carlson; Cadillac Ranch Bar, Inc. d/b/a Cadillac Ranch Bar, retail, 3307 Nationway; Fraternal Order of Eagles Aerie #128, ltd. retail, 1600 Thomes Ave.; B.P.O. Elks #660, ltd. retail, 100 E. 17th St.; W. E. Dinneen, Inc. d/b/a W. E. Dinneen, Inc. Package Liquor, retail, 400 W. Lincolnway; KEG, Inc. d/b/a D.T.'s Liquor Mart & Tusker Bar, retail, 3310 Ridge Road; JKLL, Inc. d/b/a The Drunken Skunk, retail, 1617 Capitol Ave.; Twin Dragon Chinese Rest., Inc. d/b/a Twin Dragon, rest., 1809 Carey Avenue; South Side Bar, Inc. d/b/a Keg 'n Kork Liquors, retail, 822 Central Ave.; Rande's Ritz, LLC d/b/a Midtown Tavern, retail, 1303 E. Pershing Blvd.; Cheyenne Country Club, ltd. retail, 800 Stinner Road; F & G Corp. d/b/a The Green Door, retail, 301 E. Lincolnway; ENI, Inc. d/b/a Eagle's Nest, retail, 1101 W. Lincolnway; Outback Steakhouse of Florida, LLC d/b/a Outback Steakhouse, retail, 1626 Fleischli Parkway; Lambousis Revocable Trust, retail, 112 W. 17th St.; Four Winds, Inc. d/b/a Four Winds, retail, 1103 E. Pershing; EKG, Inc. d/b/a D.T.'s Package Liquor and Lounge, retail, 2121 E. Lincolnway; Alf in Wyoming Enterprise, LLC d/b/a Alf's Pub and Package Liquor, retail, 1622 E. 19th St.; Flatland Investments, LLC d/b/a Godfather's Pizza, rest., 5719 Yellowstone Road; Francis E. Self Post #6 d/b/a The American Legion Post #6, ltd. retail, 2001 E. Lincolnway; The Peaks Cafe II, LLC d/b/a The Peaks Cafe II at the Airport, rest., 300 E. 8th Ave.; F.E. Warren Post #1881 d/b/a V.F.W. Post #1881, ltd. retail, 2816 E. 7th St.; Knights of Columbus Council #801 d/b/a Casey's Club, ltd. retail, 507 W. 28th St.; Blanne Enterprises, Inc. d/b/a Cool

River Wine & Spirits, retail, 5225 Yellowstone Rd.; Re-o-na Sushi and Thai d/b/a Re-o-na Sushi Bar and Thai Cuisine, rest., 112 W. 17th St.; Los Abuelos Mexican Restaurant, LLC d/b/a Los Abuelos Mexican Restaurant, retail, 1601 Central Ave.; Airport Golf Club, Inc., ltd. retail, 4801 Central Ave.; Katrina M. and Adam L. Howell d/b/a Scooter's Scoreboard Bar, retail, 507 E. Lincolnway; Cloud 9, Inc. d/b/a Cloud 9 Liquorland, retail, 1958 Dell Range Blvd. #C; Texas Roadhouse Holdings, LLC d/b/a Texas Roadhouse, retail, 1931 Bluegrass Circle; HEJE, Inc. d/b/a Outlaw Liquors, retail, 4503 Western Way; KZ Corporation d/b/a Daisy Duke's, retail, 2801 E. Lincolnway; Minglemill, Inc. d/b/a Mingles, retail, 1618 Stillwater Ave.; Prairie View Golf Club, ltd. retail, 3600 Windmill Road; Albany, Inc. d/b/a Albany Rest., Bar and Liquormart, retail, 1506 Capitol Ave.; Mehn, Inc. d/b/a Casa De Garcia, rest., 122 W. 6th St.; S&W Properties, LLC d/b/a Vinos Wine and Spirits, retail, 453 Vandehei Ave., #190; The Plains Hotel Co., LLC d/b/a The Plains Hotel, resort, 1600 Central Ave.; Anong & Brett Larsen d/b/a Anong's Thai Cuisine, rest., 620 Central Ave.; Avanti, Inc. d/b/a Dell Range Liquor, retail, 3806 Dell Range Blvd., Suite 4; Pizza Hut on Yellowstone, Inc, rest., 5320 Yellowstone Rd.; Hotel West I, LP d/b/a Holiday Inn Cheyenne, resort, 204 W. Fox Farm Rd.; AMVETS Post #10, ltd. retail, 3839 E. Lincolnway; Moreno & Reyes, LLC d/b/a Guadalajara Family Mexican Rest., rest., 1745 Dell Range Blvd.; Pizza Hut of Cheyenne, Inc. d/b/a Pizza Hut/Wing Street, rest., 4503 Western Way; 2 Doors Down 2, Inc. d/b/a 2 Doors Down 2, rest., 1802 Dell Range Blvd., #2; Morris House Enterprises, Inc. d/b/a Morris House Bistro, rest., 2114 Warren Ave.; Bighorn Associates, LC d/b/a Chili's Southwest Grill and Bar, retail, 1320 Dell Range Blvd.; Appaloosa Enterprises, LLC d/b/a Sanford's Grub & Pub, retail, 115 E. 17th St.; Maria Ramos d/b/a El Charrito Mexican Restaurant, rest., 216 E. 17th St.; RMH Franchise Corporation d/b/a Applebee's Neighborhood Grill and Bar, retail, 1401 Dell Range Blvd.; Delilah R. Pineda d/b/a Estevan's Cafe, rest., 1820 Ridge Road; GMRI, Inc. d/b/a Red Lobster #639, retail, 1923 Dell Range Blvd.; Dynasty Café, Inc. d/b/a Dynasty Cafe, rest., 600 W. 19th St.; Mondello Corporation d/b/a L'Osteria Mondello, rest., 1507 Stillwater; China Buffet, Inc. d/b/a China Buffet, rest., 1958 Dell Range Blvd.; Shadows Brewing Co., LLC d/b/a Shadows Pub & Grill, rest., 115 W. 15th St., #1; Steamboat's, LLC d/b/a Steamboat's Wyoming Steak and Smoke House, retail, 1947 Dell Range Blvd.; Nagle-Warren Mansion, LLC d/b/a Nagle-Warren Mansion LLC, rest., 222 East 17th St.; Wadsworth Old Chicago, Inc. d/b/a Old Chicago Rest., retail, 1734 Meadowland Dr.; Sandra J. Innis d/b/a 2 Doors Down, rest., 118 E. 17th St.; Soo Hyun Choi, LLC d/b/a Tokyo Bowl, rest., 1829 Dell Range Blvd.; Jerry P. Innis d/b/a Pizzeria Venti, rest., 112 E. 17th St.; Shadows Brewing Co., LLC d/b/a Shadows Pub & Grill, microbrewery, 115 W. 15th St.; Freedoms Edge Brewing Co., LLC d/b/a Freedoms Edge Brewing Co., microbrewery, 301 W. Lincolnway; OG of Cheyenne, Inc. d/b/a The Olive Garden Italian Rest., bar & grill, 1536 Dell Range Blvd.; Moreno and Aguilar, LLC d/b/a Hacienda Guadalajara, bar & grill, 317 E. Lincolnway; O'Jackson's, Inc. d/b/a Jackson's All American Sports Bar & Grill, bar & grill, 1121 Old Town Lane; Blazin Wings, Inc. d/b/a Buffalo Wild Wings Grill & Bar, bar & grill, 1740 Prairie Ave.; The Suite, LLC d/b/a The Suite, bar & grill, 1901 Central Ave. Motion (per Consent Agenda) carried.

Re-Appointment of Tucker Fagan to the City of Cheyenne, Wyoming- Laramie County, State of Wyoming Joint Powers Board for Frontier Park improvements. Ms. Broyles moved to approve, seconded by Mr. Luna. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointment).

RESOLUTION - Adopting Plan Cheyenne: Reflections and Progress, as the Community Plan for the City of Cheyenne, the Comprehensive Plan for portions of Laramie County, and the Transportation Master Plan for the Cheyenne Urban area. Prior to calling for public input on the

item, Mayor Kaysen reviewed public participation speaker guidelines that would apply, including a time limit of 5 minutes per speaker, due to the number of attendees wishing to provide comments. The following individuals spoke in support, non-support or in favor of making amendments to the PlanCheyenne document presented for adoption by the proposed resolution: Tim Bieligk; John Carey; Chris McCall; Carol Matteson Pascal; Glen Chavez; John Volk; Boyd Wiggam, Wyoming Liberty Group; Frank Cole; Earl Leighan; Lisa Ammons; Joe Dougherty, City Transit program; Celeste Siemens; Stacy Lynne; Jim Lake; Karen Walden; Laura Jeffrey, South Cheyenne Community Development Association (SCCDA); Jan Nelson-Schroll; Cheryl Burd; State Representative Mary Throne; Mike Tuttle; Taylor Haynes; Dick Krahenbuhl; Thomas Hutchings; Tyler Troyer; Lorraine Grigsby; Laramie County Commissioner M. Lee Hasenauer; State Representative Lynn Hutchings; Betty Scranton; Albert Simpson; Ken Trowbridge; Judy Meyer; Jeff Moench, and Pete Laybourn. Topics presented by speakers included the following: Protection of private property owner rights, liberties and freedom; U.S. and state constitutional concerns; community plan as a guideline for growth, progress and improvements; infrastructure; public input process; market demand; non-local consultant firm involved in preparation of the proposed plan; Metropolitan Planning Organization (MPO) involvement and administrative oversight of the MPO; federal and state funding concerns; proposed design standards; suggested amendments to the Transportation Master Plan portion of the document; concern with potential plan effect on disabled, senior and minority populations within the community, elements of the plan involving complete streets, bike lanes, and amenities such as parks, trails and open spaces; federal funding support for the transit program; providing choices for private property owners; state's recent property issue involving the Environmental Protection Agency; comparison of proposed City plan to the City of Fort Collins, Colorado, plan; MPO administrative oversight; opposition to annexation; support for retaining the community's western heritage and benefits of tourism; proposed amendments requested by the SCCDA; historic preservation; fair and appropriate implementation of the plan; philosophy of reasonable growth and planning; concern with impeding flow of traffic in certain areas, including the downtown area; bicyclist and youth safety; vision and quality of life issues affiliated with a plan document; free enterprise; suggestion that plan be voted upon by electors; striking the word "regional" throughout the document; incorporating a glossary of words and phrases within the document; United Nations Agenda 21; suggestion of forming a citizens committee; beneficial use of federal funds, and complexity and length of the PlanCheyenne document. During public comments, several documents were read, submitted or referenced, which are on file with the City Clerk's office. Reporting for Committee of the Whole, Dr. Rinne moved to adopt, seconded by Mr. Brown. Dr. Rinne moved to amend by substitute resolution dated March 4, 2014, seconded by Mr. Shanor. It was advised the amendments being proposed remove some of the restrictive language, such as removing the word "shall" and replacing it with "should" or "may" as debated at the Committee of the Whole meeting, and addresses issues involving private property rights, due deference to market forces and the private sector, and affordable housing and development costs. Motion to amend by substitute carried. Voting "yes" -- Mr. Allen, Mr. Brown, Ms. Broyles, Mr. Cook, Dr. Rinne, Mr. Shanor, Mr. Valdez and Mayor Kaysen. Voting "no" -- Mr. Luna and Ms. Williams. Dr. Rinne moved to amend the substitute to incorporate Exhibit A-Amendments dated March 4, 2014, seconded by Ms. Broyles. It was confirmed Exhibit A-Amendments was the same document as reviewed and recommended at the Committee of the Whole meeting. Ms. Lynne requested clarification on whether there was more than one Exhibit A. Dan White, City Attorney, advised Exhibit A referenced in the resolution is the PlanCheyenne document and Exhibit A-Amendments is the document involved in the proposed amendment, which would be an exhibit attached to PlanCheyenne as text amendments. Ms. Lynne questioned whether it would be possible to re-name one of the exhibits for clarity of the public on

what is being voted upon. Discussion included that Exhibit A referenced in the resolution was the PlanCheyenne document itself and that the document titled Exhibit A-Amendments 3/4/14 involves 17 proposed amendments to the PlanCheyenne (Exhibit A) document. During discussion, Mr. Allen raised a point of order inquiring whether a motion had been made or was needed to change the title of Exhibit A to Exhibit B. Mayor Kaysen stated a motion could be made. There being no motion offered, Mayor Kaysen advised that through discussion, which had included his query to City Council members and Mr. White concerning any objections to referring to the exhibit as Exhibit B, which resulted in no objections being raised, that Exhibit A-Amendments would be referred to as Exhibit B relative to clarification for the public and an understanding by governing body members on what document was involved in the motion to amend currently on the floor. Motion to amend carried. Voting "yes" -- Mr. Allen, Mr. Brown, Ms. Broyles, Mr. Cook, Dr. Rinne, Mr. Shanor, Mr. Valdez and Mayor Kaysen. Voting "no" -- Mr. Luna and Ms. Williams. Ms. Williams moved to amend the PlanCheyenne document, Page 17, Plan Amendment Process and Procedures, as follows: (Proposed Amendment #1) Amendments to PlanCheyenne that occur outside of a regular Comprehensive Review process are considered to be Plan Amendments. The City Council and County Commissioners may perform Plan Amendments as necessary. Citizens may request Plan Amendments as necessary. There is no cap to the number of Plan Amendments annually. The Process is as follows: 1) A directive for an amendment by a governing body or a citizen request for amendment occurs. 2) Staff reviews the amendment proposal, files a staff report, and forwards the amendment request to the Planning Commission. 3) The Planning Commission shall hold a public meeting regarding the amendment request. 4) The amendment request will go before the governing body that will not have jurisdiction for comments only. 5) The amendment request will go before the governing body that will have jurisdiction for action. 6) A public meeting will be held and input will be shared by the public. The sequence of review steps is to ensure plan consistency. Approval of amendments will be by resolution. Motion died due to lack of a second. Ms. Williams moved to amend the PlanCheyenne document and the substitute resolution as previously amended as follows: (Proposed Amendment #2) Include a glossary of words and phrases in the Community Plan as "Appendix F". All other supporting plans (Transportation Master Plan, etc.) will reference Appendix F. The glossary will consist of two parts: (1) definitions, and (2) application impacts. Part One: Definitions of words that are typically used in the planning industry will form the basis of this glossary. The literal meaning of the word should be stated using simple English. The use of additional obscure and confusing vernacular within the definitions of the words will be avoided. Examples of words to be defined include and are not limited to: livability, walkability, bikeability, end of ride facility, access management, activity centers, compact design, high density housing, bicycle box, decision-makers, overlay district, active transportation, cultural site, cluster development, density transfer, conservation overlay, natural/cultural resource area, incentivize, synthesize public comments, stakeholders, smart growth, zero energy development, sustainable, public engagement, best practices, models, scientific method, conservation easement, smart meters, meeting facilitator, vehicular cycling, reframe/rescript/rebrand, and other basic words and phrases tied to long-range planning documents. Part Two: Each definition will include a short summary of the application impacts as related to the concepts and intent of the words and phrases that are being defined. (Proposed Amendment #3) Remove planning policies and funding for items that are not essential government services. Removal of non-essential government services from PlanCheyenne satisfies the legal requirements of community planning. Essential government services are commonly known as: Fire departments; law enforcement departments; infrastructure systems such as roads, electricity and water; national security; care of prisoners and others who are in the custody of the government; emergency and disaster assistance; air traffic control; border patrol ... (Proposed

Amendment #4) Remove the word “regional” to ensure that decision-making is based on local control. Change the word “regional” to “local”. “Local” will be defined as the entire area that is legally defined as Laramie County. (Proposed Amendment #5) Eliminate Policy 5.3.B. Elimination of this policy will ensure that private land owner’s rights are protected and the housing market will be driven by actual market demand. Rural areas will be protected by preventing unnatural “clustering” of homes. “Clustering” is more consistent with “urban” or “suburban” development. (Proposed Amendment #6) Eliminate the Future Historic Assets to be Surveyed and Preserved. Allow individual private owners (both residential and business) to seek designation for Historic Preservation for their privately owned property. This allows property values in Historic Districts to be market-driven and to remain affordable. Eliminate the process (though not described) intended to “Stabilize property values in Historic Districts”. (Proposed Amendment #7) Remove all “incentives” to “encourage infill” so that the real estate industry will be market-driven. Eliminate the special exception of “reduced parking requirements” so that the availability of vehicle parking at residences is protected. Remove discriminatory practices of expediting development applications for infill areas. (Proposed Amendment #8) Describe the procedures and methods that will be used for “strongly encouraging” a developer to build homes based on the Plan’s requirements. Add the descriptions of the procedures and methods into the policy that will be used to strongly encourage developers. (Proposed Amendment #9) Eliminate Policy 2.4.A based on interference with private property rights through use of a Future Land Use Plan that conflicts with the current landowner’s rights. Elimination of Policy 2.4.A will ultimately respect the legal protections provided by well-established contract law and ex post facto laws. (Proposed Amendment #10) Remove “Focus on nightlife” from the Education Policy. (Proposed Amendment #11) Remove the offering of any and all “incentives” to residential developers, commercial developers and small business owners. Allow the private market to be driven by consumer demand and protect equal competition so that market demand is naturally fulfilled. (Proposed Amendment #12) Remove all public funding and programs for “art in public places” so that the creative industries are market-driven. Allow private businesses or individuals to sponsor and/or donate art for public use. (Proposed Amendment #13) The Cheyenne Area Master Plan Community Plan, Final Draft February 21, 2014, will be used as the sole reference document (with the inclusion of all amendments passed after that date). Specially: if and when the “streamlined” version as titled above is adopted by the governing body, then the document referred to as the January 2014 Draft of PlanCheyenne becomes null in its entirety. The January 2014 Draft of PlanCheyenne will not be used for reference by any internal city departments, internal county departments, agencies, boards, commissions, committees, or elected bodies, nor will the January 2014 Draft be referred to for any guidance, policy, or procedures. (Proposed Amendment #14) All future actions and implementations required to be considered by the governing bodies as related to policies and procedures in the Community Plan dated February 21, 2014 and including subsequently adopted amendments, and the Transportation Plan that is dated February 21, 2014 and including subsequently adopted amendments, will be presented as regular agenda items and not as items on the consent agenda. Each regular agenda item will contain accurate information in order to allow the elected bodies to responsibly consider the impacts of the specific action to be implemented. That basic information will include and is not limited to: 1. Funding source; 2. Costs using traditionally established methods of determining total project costs; 3. Confirmed availability of funds prior to adoption by the governing body; 4. Comparisons of the impact that similar actions have had on other Front Range Communities. These comparisons will be made through the use of neutral, third-party information sources. Comparisons will not be made through the use of insider-industry methods commonly referred to as “best practices”; 5. Scientifically validated evidence that supports the claims of the project goals, intent, and actions; and 6. Other relevant data that will allow elected officials to

make responsible and informed decisions for their constituents. (Proposed Amendment #15) All proposals, additional codes and all policy decisions related to the Transportation Plan will be founded on actual data. The use of transportation models to predict future congestion is based on current Land Use Plans. Estimations and projections of traffic congestion that will occur in the year 2040 that are based on current land use plans are scientifically invalid. Scientifically invalid methods and procedures will not be used to determine transportation planning. (Proposed Amendment #16) Clarify the difference between "Exhibit A" in "A Resolution Adopting PlanCheyenne ..." meaning the document dated February 21, 2014 referred to as PlanCheyenne: Reflections and Progress and Exhibit A-Amendments 3/4/14 as presented by Councilor [Dicky] Shanor. (Proposed Amendment #17) Include a current Land Use Map in PlayCheyenne: Reflections and Progress that distinctly illustrates privately owned land that is situated outside of the City of Cheyenne boundary, but that is inside Laramie County boundaries. Proposed Amendment to the "Resolved" section of the Resolution to include: WHEREAS, Wyo. Stat. Ann. § 9-8-301, § 15-1-503, and § 18-5-202; and 23 U.S. 134 (i)(1)(A) and (i)(B)(ii); and 23 CFR § 450.322 are legal references related to land use plans, master plans, comprehensive plans, and transportation plans. AND, Art. 1, § 37 of the Wyoming Constitution declares that "The State of Wyoming is an inseparable part of the federal union, and the Constitution of the United States is the supreme law of the land". As such, all aforementioned legal references shall be in compliance with the supreme law. Further, Art. 1, § 7 of the Wyoming Constitution states "Absolute arbitrary power over the lives, liberty and property of freemen exists nowhere in a republic, not even in the largest majority." THEREFORE, the guide commonly referred to as PlanCheyenne: Reflections and Progress shall be inseverable and in compliance with the Wyoming Constitution and the Constitution of the United States. During recitation of the motion by Ms. Williams, a point of order was raised by Mr. Brown questioning whether all of the proposed amendments could be incorporated into the record by reference in lieu of them being orally read as all members of the governing body had previously received a copy of the proposed amendments. Pursuant to inquiry to Ms. Williams by Mayor Kaysen, Ms. Williams indicated her preference was to read the amendments orally with Mayor Kaysen concurring. Pursuant to inquiry to Ms. Williams by Mayor Kaysen as to whether it was her intention to retain Proposed Amendment #16 in her motion as it had been acted upon by previous motions, Ms. Williams stated it was her intent that the proposed amendment (#16) be included in her motion. Motion died due to lack of a second. Comment followed that there is an amendment process contained in the current plan which allows for further amendments to be brought forward by the City Council and County Commissioners and that the normal City Council meeting and committee process would be followed, which provides the opportunity for public review and participation. In response to inquiry, Mayor Kaysen advised even though this is a joint resolution, the City and County governing bodies have authority to adopt their own plan and any future amendments would involve the City Council's usual public process for awareness and input. Main motion as twice amended carried. Before announcing the result of the votes taken on the motion, Ms. Williams requested, pursuant to Robert's Rules of Order, that she be allowed to change her vote from "yes" to "no" with Mayor Kaysen noting the change would be allowed as the voting results had not yet been stated. Voting "yes" -- Mr. Allen, Mr. Brown, Ms. Broyles, Mr. Cook, Dr. Rinne, Mr. Shanor, Mr. Valdez and Mayor Kaysen. Voting "no" -- Mr. Luna and Ms. Williams. (#5573)

Under other business, John Walker, attorney, Hickey and Evans Law Firm, representing International Association of Fire Fighters (I.A.F.F.) Local #279, requested the City engage in collective bargaining with his clients. Mr. Walker stated his understanding that it is the position of some that the request for collective bargaining was not timely given, noting his disagreement and indicating that he would not be debating that issue at the meeting. Mr. Walker represented, based

on research he had conducted, that the governing body has the power and authority to waive any delay in the service of the request and engage in the collective bargaining process. He further requested if members were unable to fully process the request [tonight] that it be reconsidered at a later time. Upon inquiry, Mr. Walker advised it is their position that the deadline was met and the request was timely submitted. He expressed his opinion that if the governing body felt the time frame had not been met, it has the power and authority to waive any delays in the service of the collective bargaining request. Mayor Kaysen requested Mr. Walker provide a copy of his research to Dan White, City Attorney.

There being no further business to come before the governing body, the meeting was officially adjourned at 9:55 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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